

Title: Emami v. Dabur — Trade Dress Infringement Between Ayurvedic Product Brands

Jurisdiction: India

Category: Case Law

Source Citation: Emami Limited v. Dabur India Limited, Delhi High Court (interim orders, single judge and division bench, 2023)

Plain English Summary:

Emami sued Dabur, alleging Dabur's "Cool King Thanda Tael" packaging was a deceptively similar copy of Emami's "Navratna Ayurvedic Oil" trade dress — same colour scheme, layout, and overall look. The Delhi High Court agreed there was a prima facie case of passing off, restrained Dabur from selling in the disputed packaging, and later allowed only a limited, disclosed sell-through of existing stock. For an Ayurvedic brand, this shows courts scrutinize **overall visual "trade dress"** (colour, layout, bottle shape) — not just the brand name — when assessing infringement between competing Ayurvedic product lines.

The Exact Legal Text:

[Case law, not statute — summarized holding.] The Court found that "the defendant has consciously imitated nearly every essential and distinctive feature of the plaintiff's product, apparently to capitalize on the goodwill and reputation earned by the plaintiff's product," holding that a clear prima facie case of passing off had been made out against Dabur. An interim injunction was passed restraining Dabur from selling "Cool King Thanda Tael" in the disputed trade dress; a division bench subsequently upheld this injunction, and Dabur was later permitted to sell off pre-existing stock only under weekly disclosure conditions, with mandatory recall of unsold units after a fixed date.

Keywords/Triggers:

Emami vs Dabur, trade dress infringement Ayurveda, passing off Ayurvedic product, Navratna oil case, packaging similarity trademark, Delhi High Court Ayurveda brand dispute